

**UNITED STATES DISTRICT COURT
CENTRAL DISTRICT OF CALIFORNIA
SOUTHERN DIVISION**

ChromaDex, Inc.,

Plaintiff,

v.

Elysium Health, Inc., and Mark Morris,

Defendants.

Elysium Health, Inc.,

Counterclaimant,

v.

ChromaDex, Inc.,

Counter-Defendant.

Case No. 8:16-cv-2277-FWS-DFM

JUDGMENT

1 WHEREAS, on February 3, 2022, the parties formed a valid, binding, and
2 enforceable settlement agreement;

3 WHEREAS, pursuant to the settlement agreement, the parties agreed that
4 Defendant and Counterclaimant Elysium Health, Inc. (“Elysium”) would pay to
5 Plaintiff and Counter-Defendant ChromaDex, Inc. (“ChromaDex”) a total of \$2.5
6 million to resolve any outstanding issues with respect to the claims and counterclaims
7 tried to the jury in this case (the “Jury Claims”), including the issue of prejudgment
8 interest, as well as the litigation between ChromaDex and Elysium in the U.S. District
9 Court for the Southern District of New York captioned *In re Elysium Health-*
10 *ChromaDex Litigation*, No. 17-cv-7394-LJL;

11 WHEREAS, pursuant to the settlement agreement, the parties agreed that all parties
12 to this litigation shall bear their own attorney’s fees and costs arising from the Jury
13 Claims;

14 WHEREAS, pursuant to the settlement agreement, the parties agreed that the
15 parties shall not file any post-trial motions or appeals related to the Jury Claims;

16 WHEREAS, pursuant to the settlement agreement, the parties agreed that the \$2.5
17 million settlement payment would be paid in two equal installments of \$1.25 million
18 each, the first of which would be paid on or before the last day of February 2022, and
19 the second of which would be paid on or before the last day of February 2023;

20 WHEREAS, pursuant to the settlement agreement, the parties agreed that interest
21 would accrue on the amount of the second installment from February 3, 2022, but that
22 accrued interest would be forgiven provided that Elysium paid the second installment
23 on or before the last day of February 2023;

24 WHEREAS, pursuant to the settlement agreement, the parties agreed that should
25 Elysium fail to pay the second installment on or before the last day of February 2023,
26 ChromaDex shall be entitled to recover from Elysium any attorney’s fees and costs
27 incurred to collect the second installment;

28 WHEREAS, Elysium has not paid either installment of the settlement payment;

1 WHEREAS, the settlement agreement calls for judgment to be entered on the terms
2 stated as to all outstanding issues with respect to the Jury Claims;

3 WHEREAS, all claims other than the Jury Claims have been dismissed from this
4 case;

5 WHEREAS, the settlement agreement therefore provides the terms for final
6 judgment as to all remaining claims in this case;

7 WHEREAS, the court recently granted ChromaDex, Inc.'s motion for entry of final
8 judgment;

9 **THEREFORE, IT IS HEREBY ORDERED, ADJUDGED, AND DECREED THAT:**

10 1. Elysium shall pay to ChromaDex the sum total of \$2,500,000 to resolve
11 any outstanding issues that existed as of February 3, 2022 with respect to the Jury
12 Claims, including the issue of prejudgment interest, as well as the litigation between
13 ChromaDex and Elysium in the U.S. District Court for the Southern District of New
14 York captioned *In re Elysium Health-ChromaDex Litigation*, No. 17-cv-7394-LJL.

15 2. Any outstanding issues that existed as of February 3, 2022, with respect to
16 the Jury Claims, including prejudgment interest, are **DISMISSED WITH**
17 **PREJUDICE.**

18 3. All parties shall bear their own attorney's fees and costs arising from the
19 Jury Claims.

20 4. The parties shall not file any post-trial motions or appeals related to the
21 Jury Claims.

22 IT IS FURTHER ORDERED, ADJUDGED, AND DECREED that this Court
23 shall retain jurisdiction of this matter for the purposes of enforcing the terms of this
24 final judgment for 120 days, or until further order of the court.

25 The Clerk is ordered to enter this final judgment forthwith and without further
26 notice.

27 Dated: August 13, 2024

28 

Hon. Fred W. Slaughter
United States District Court Judge